

# Draft email to Avv. Primo Belardi — English

**Note:** This is the English draft of the proposed email to Avv. Belardi, for Grahame's review. The Italian translation will be produced once this is approved.

**From:** Grahame McGirr <gmcgirr@naissance.co.uk>

**To:** Primo Belardi <avv.primobelardi@gmail.com>

**Subject:** Naissance UK Ltd / Curatela Fallimento Agricola Gavioli — defence instructions

Dear Avv. Belardi,

Thank you for your email of 17 April and for your strategic analysis. This message confirms my instructions for the defence and the parallel settlement channel.

## 1. The commercial reality of this case — and the argument I want pleaded

The trustee's claim rests on a narrow restitution theory. The commercial reality, stated only on the figures the bankruptcy and the trustee himself have already accepted, is the following:

| Line                                            | Amount           | Source                                                               |
|-------------------------------------------------|------------------|----------------------------------------------------------------------|
| Residual mortgage claim admitted to the passivo | €572,438.29      | Istanza/decree of admission; conceded in the Ricorso                 |
| Out-of-pocket recovery costs paid by Naissance  | €132,000         | FX wires (Thomas Exchange UK) + two UBI cost cheques                 |
| <b>Total exposure admitted / documented</b>     | <b>~€700,000</b> |                                                                      |
| Highest genuine pre-auction offer on the asset  | €620,000         | Marco Gavioli email, 12.09.2017, via Gordana Lupi to Argo Ge.Re.Cre. |
| <b>Shortfall at best market view</b>            | <b>~€80,000</b>  |                                                                      |
| Further amount the trustee now claims           | €57,536.75       | Ricorso prayer                                                       |
| <b>Shortfall if the trustee wins</b>            | <b>~€140,000</b> |                                                                      |

On these numbers:

- The bankrupt estate has lost nothing that the judicial procedure did not itself deliver.
- Naissance is the only party out of pocket — by approximately €80,000 at best market view, or ~€140,000 if the trustee wins.

- The trustee's "received" figure of €629,975.04 itself exceeds every pre-auction offer ever made on the asset, which is reason to doubt that the full €629,975.04 reflects genuine market value Naissance obtained.

I would like this pleaded as the **equitable frame** of the defence — both in the comparsa and in the parallel settlement channel. I understand that art. 56 L.F. blocks a formal set-off and that a formal counterclaim for the shortfall would invite art. 2741 c.c. *par condicio creditorum* objections, and I am therefore **not** asking you to plead the shortfall as statutory compensation. I am asking you to present it as the commercial context within which the technical points below are heard, and to use it as the decisive lever with the curator.

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## 2. Technical defence points to include

Within the equitable frame above, the defence should also press the following:

- **The €3,932 "legal expenses not admitted to the bankruptcy liabilities"** (one of the components the trustee includes inside his €629,975.04 figure). By the trustee's own characterisation this sum sits outside the formal concorso and therefore cannot be the subject of *ex lege* restitution under art. 110 L.F. / art. 2033 c.c.
- **The €4,761.47 prededuzione** excluded by the G.D. at 2019 admission — to be preserved as an equitable exception against any amount ordered to be returned.
- **Factual distinguishing of Cass. 23482/2018 and Cass. 12673/2022.** I do not want finality pleaded in the abstract. I want the two Supreme Court decisions read in full and distinguished on their facts (in particular: was the curator notified of the 04.04.2019 distribution hearing, and did he fail to intervene in time?). I would be grateful for your honest view before the pleading is settled.
- **Errore materiale in the 2018 Istanza** — clause 3 recites €1,118,438.29 while clause 4's parenthetical calculation recites €1,188,438.29 (only the latter reconciles). I had no direct contact with Avv. Fiorilli at the time — all instruction ran through Argo Ge.Re.Cre. Please plead this as contextual support, not as a decree-reopening attack (I accept the 2019 admission order is *res judicata endofallimentare*).
- **Interest start date.** Interest should run from the judicial demand (30.12.2025), not from the informal diffide (01.07.2025).
- **Art. 210 c.p.c. document production** of the 04.04.2019 hearing minutes, the distribution plan as filed, and the decree executing the state of liabilities (with its reasoning on the €4,761.47 exclusion).

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## 3. Settlement authority — to be used in parallel with the defence

Please open a parallel settlement channel with Dott. Scarpellini as soon as the costituzione is filed. Your authority:

- **Opening:** €20,000 – €25,000 all-in (capital, interest, all costs), saldo e stralcio.
- **Target landing:** €30,000 – €40,000.

- **Maximum authorised ceiling (walkaway):** €45,000. Above this figure I would rather proceed to hearing.

My pitch to the curator, which I would like you to convey, is set out in §1 above: Naissance is already ~€80k short on the bankruptcy's own admitted numbers; 100% recovery against that background is not realistic; a figure within €30–40k, paid promptly, is the sensible resolution.

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#### 4. Handling of Avv. Fiorilli

I confirm your recommendation not to join Avv. Fiorilli to this proceeding. However, please **draft a PEC diffida to Avv. Fiorilli this month**, in terms sufficient to interrupt the limitation period on any future professional-negligence action. Hold it; do not serve it before the outcome of this proceeding is known. I want the draft ready.

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#### 5. What I need back from you, in writing, before you settle the pleading

1. Confirmation of the procedural vehicle (*memoria difensiva* vs *comparsa di costituzione e risposta* under the rito semplificato) and the costituzione deadline of 04.05.2026.
2. Your view — having read the full text of Cass. 23482/2018 and Cass. 12673/2022 — on whether their facts are genuinely distinguishable from this case.
3. Your drafting timetable.
4. Your confidential estimate of the probability of success on (i) the €3,932 attack and (ii) the factual distinguishing of the Cassazione cases.
5. Your candid view of the curator's likely settlement posture and of what figure he could realistically accept.

I am available for a short call in the next few days.

Kind regards,

Grahame  
Grahame McGirr  
Director  
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